

**STATE OF MICHIGAN
IN THE 14TH CIRCUIT COURT FOR THE COUNTY OF MUSKEGON
FAMILY DIVISION**

Case No.: 2024-001507-DC
Honorable Judge Jenny McNeill

PLAINTIFF:

Andrew J. Pigors
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DEFENDANT:

Emily A. Watson
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**EX PARTE MOTION TO REOPEN CUSTODY CASE, MODIFY CUSTODY, REQUEST
EMERGENCY TEMPORARY CUSTODY ORDERS, AND PROHIBIT
INTERNATIONAL TRAVEL TO NON-HAGUE COUNTRIES**

I. Introduction and Urgent Background

1. Plaintiff, Andrew J. Pigors, urgently submits this Ex Parte Motion, per **MCR 2.612** and **MCL 722.27**, seeking immediate intervention to modify the current custody arrangement regarding his son, **LDW**, due to escalating, aggressive, and erratic behavior by Defendant **Emily A. Watson**. Plaintiff asserts that recent actions, including baseless accusations and refusal to communicate, place LDW's physical and emotional welfare at immediate risk and necessitate emergency temporary custody orders.

2. Emergency Temporary Custody Orders and Ex Parte Necessity: Under Michigan law, ex parte relief is warranted when a child's welfare faces immediate risk (*Vodvarka v. Grasmeyer*, 259 Mich App 499 (2003)). Defendant's recent conduct includes unfounded allegations of assault, stalking, neglect, and drug use, combined with documented PPO violations and non-responsiveness within the AppClose app. Plaintiff respectfully requests emergency temporary custody of LDW, asserting that Defendant's behavior reflects a pattern of aggression, obstruction, and misuse of legal procedures.

II. Emergency Temporary Custody Orders Due to Erratic, Aggressive, and Obstructive Behavior

1. Documented Refusal to Communicate in AppClose App and PPO Misuse: Defendant has ceased communication with Plaintiff on the AppClose app, refusing to share essential information regarding LDW's health, well-being, and daily activities. Defendant's use of the PPO as an excuse for non-communication directly endangers LDW's safety, depriving Plaintiff of vital information required for effective co-parenting. This non-responsiveness obstructs Plaintiff's ability to ensure LDW's welfare and directly contradicts Michigan's guidelines for co-parenting responsibilities. **(Exhibit A: AppClose Entry)**

2. Escalating Allegations Without Proof: Defendant's accusations against Plaintiff include unsubstantiated claims of physical assault, drug use, and neglect. Notably:

- **Physical Assault Allegations:** Defendant has repeatedly accused Plaintiff of assault without providing any evidence, such as police reports or witness statements, in violation of **MCL 764.15e** and principles set forth in *People v. Jackson*, 159 Mich App 568 (1987), which mandate credible evidence for such claims.
- **Stalking and Harassment:** Defendant alleges that Plaintiff has stalked and harassed her, claims that lack verification from law enforcement or third-party witnesses. Michigan's **MCL 750.411h** criminalizes stalking only with concrete evidence, as reinforced by *People v. White*, 212 Mich App 298 (1995).
- **Placement of Tracking Device:** Defendant claims Plaintiff placed a tracking device in LDW's diaper bag, yet no physical proof substantiates this. **MCL 750.539d** requires objective evidence of unauthorized surveillance, as clarified in *People v. Stone*, 463 Mich 558 (2001).

These accusations are legally baseless without substantiated proof, unjustly threatening Plaintiff's parental rights and undermining LDW's stability.

3. Potential Misuse of PPO to Avoid Accountability and Obstruct Parenting Rights

- Defendant's likely misuse of the PPO to avoid accountability and obstruct Plaintiff's parental rights necessitates Court clarification on the PPO's scope. The PPO should not serve as a barrier to necessary communication and co-parenting for LDW's welfare. This anticipated tactic undermines **MCL 722.23** best interest factors, which require transparency in co-parenting.
 - Plaintiff fully complies with the PPO, underscoring his commitment to LDW's best interests. However, Defendant's actions reveal a pattern of alienation, blocking critical communication under the pretense of the PPO, violating both Plaintiff's rights and LDW's well-being.
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III. Preemptive Rebuttal to Defendant's Anticipated Claims Regarding PPO

1. Scope and Limitations of PPO: Plaintiff affirms that the PPO does not extend to necessary co-parenting communication, as LDW's health, safety, and daily updates require shared communication. Any attempt by Defendant to use the PPO as a shield violates the PPO's intended purpose and prevents Plaintiff from fulfilling his role as an engaged parent.

2. Plaintiff's Compliance with PPO Terms: Plaintiff emphasizes his strict adherence to all PPO terms, including those governing physical distance and respectful communication. Defendant's likely misuse of the PPO to avoid communication obstructs LDW's right to receive love, attention, and support from both parents, a foundational element of **MCL 722.23**.

3. Preventing Alienation and Harmful PPO Misuse: Michigan courts recognize that parental alienation severely impacts a child's emotional health and stability (*Harris v. Harris*, 152 Mich App 146 (1986)). Plaintiff requests that the Court clarify that the PPO does not inhibit co-parenting responsibilities, thereby safeguarding LDW's best interests.

IV. Summary of Defendant's Aggressive and Erratic Actions

The following actions further demonstrate Defendant's pattern of aggressive and erratic behavior, endangering LDW's welfare and Plaintiff's rights:

1. Unwillingness to Facilitate Medical Care for LDW

1. Urgency: Medical Request on October 5, 2024

- **Context:** On October 5, 2024, Andrew expressed an urgent concern regarding LDW's health, specifically questioning Emily's refusal to take LDW to the doctor when medical attention was warranted. Andrew noted that his prior requests for medical appointments had been disregarded, causing him to worry about LDW's well-being. He suggested that LDW be taken to Port City Pediatrics, stating that this facility would not turn away a child for being "too contagious," indicating his readiness to ensure proper medical care for LDW.
 - **Andrew's Request and Emily's Response:** Despite Andrew's proactive offer to arrange medical care for LDW and assurances that he would manage any associated costs, Emily did not engage with these requests. This apparent neglect impeded Andrew's ability to oversee his son's health needs and could be interpreted as placing LDW's health at risk.
 - **Exhibit B Reference: Text Exchange on October 5, 2024** shows Andrew's repeated request for LDW's medical attention and Emily's lack of response or action, as recorded on **Page 17 of 112** in the AppClose Report.
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2. Refusal of Routine Communication and Video Calls on September 12, 2024

- **Context:** Andrew initially proposed scheduling weekly video calls with LDW during his off weeks on June 1, 2024. This proposal aimed to maintain an emotional connection with LDW, helping to ease any separation distress and establish a continuous bond. He specifically suggested a weekly video call on Wednesdays before bedtime, citing its potential benefits for LDW's emotional stability and parent-child attachment.
 - **Emily's Refusal and Andrew's Response:** On June 4, 2024, Emily declined this request, stating that she was "not comfortable" with video calls. Andrew, while respectful of her response, emphasized the importance of co-parenting by allowing each parent reasonable access and communication, especially given the young age of LDW and his dependency on familiar connections. Andrew reiterated his stance on September 12, 2024, seeking brief communication with LDW to foster a stable relationship, which was again denied, impacting LDW's bond with his father.
 - **Exhibit C Reference: Text Exchange from June 1-4, 2024, with follow-up on September 12, 2024,** where Andrew's requests for video calls were consistently declined, indicating an obstruction of bonding efforts as seen on **Page 5 of 112** in the AppClose Report.
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3. Obstruction of Educational and Developmental Involvement (August 2024)

- **Context:** Andrew has made several attempts to engage in LDW's early education and developmental activities, particularly regarding LDW's daycare involvement and any relevant educational milestones. In August 2024, Andrew asked Emily for updates and any pertinent information related to LDW's early development, including details about his daycare experiences. Andrew's aim was to actively support LDW's developmental needs and be informed about his child's growth and learning environment.
- **Emily's Non-Responsiveness and Impact:** Emily failed to provide any response or details, thereby withholding essential information that would allow Andrew to be involved as an engaged parent. This lack of cooperation on Emily's part prevented Andrew from fully supporting his son's development, as he was not informed about key aspects of LDW's learning and growth.
- **Exhibit D Reference:** The **Lack of Response from Emily** regarding daycare and developmental information requests, as shown in multiple communication attempts, highlights an obstruction in co-parenting. This pattern is noted in the logs from August 2024, as documented in the AppClose report.

4. Persistent Allegations of Parental Misconduct Without Evidence

- **Legal Basis:** Defendant's baseless allegations, ranging from substance abuse to child neglect, lack credible proof and contravene Michigan's legal standard for evidence-based claims (refer to *Vodvarka v. Grasmeyer*, 259 Mich App 499 (2003)). These accusations jeopardize Plaintiff's parental rights and, by extension, LDW's welfare and stability.

Exhibit E: Inconsistent Communication on LDW's Medical Needs

- **Context:** Throughout the report, Andrew consistently requested updates regarding LDW's health, often asking for records of doctor visits and follow-ups on specific health concerns. However, Emily often responded with minimal information or delayed responses. For example, Andrew requested updates on a rash LDW had (May 19, 2024) and other medical issues but received limited or unclear answers, preventing him from understanding LDW's health status fully.
 - **Significance:** This pattern demonstrates a reluctance or lack of urgency from Emily to involve Andrew in LDW's medical needs, which obstructs Andrew's role as an informed and concerned parent.
 - **Example Pages:** Page 4 (May 19, 2024 text exchange) and Page 12 (July 10, 2024 text exchange) in the AppClose report.
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5. Exhibit F: Deliberate Avoidance of Court-Ordered Custody Arrangements

- **Context:** In several instances, Emily appeared unwilling to cooperate with court-ordered custody exchanges or adjustments. On June 27, 2024, Andrew requested to switch a parenting time day for a special event, a common courtesy in co-parenting, which Emily denied without explanation. Similarly, Andrew frequently inquired about details of LDW's care during his time with Emily, but Emily either ignored or gave vague responses.
 - **Significance:** This behavior could be presented as a disregard for cooperative co-parenting efforts, showing an unwillingness to accommodate reasonable requests for the benefit of LDW's relationship with Andrew.
 - **Example Pages:** Page 7 (June 27, 2024 request denial) and Page 13 (September 5, 2024 exchange).
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6. Exhibit G: Use of Third Parties to Harass or Intimidate

- **Context:** Andrew documented instances where Emily's family members, particularly her brother Cody Watson, allegedly attempted to intimidate him, including reported incidents of harassment and attempted road rage (September 20, 2024). This repeated involvement of third parties not only violated co-parenting guidelines but also put Andrew in situations that could have escalated, affecting LDW's well-being indirectly.
 - **Significance:** The involvement of Emily's family members in this manner could reflect negatively on her capacity to maintain a safe and supportive environment around LDW and Andrew. Allowing family members to interfere in this way may also show an unwillingness to protect LDW from conflict.
 - **Example Pages:** Page 14 (September 20, 2024 harassment report) and earlier instances noted across multiple pages.
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7. Exhibit H: Financial Misrepresentation and Failure to Cooperate on Insurance Information

- **Context:** There are instances where Andrew provided or offered updated insurance information to ensure LDW had adequate coverage. Despite Andrew's efforts to share these updates (such as in the exchanges on July 9, 2024, and September 8, 2024), Emily did not always reciprocate with her insurance information or, in some cases, questioned Andrew's compliance without providing her own documentation.
 - **Significance:** By not fully cooperating on insurance-related information, Emily potentially impacted LDW's consistent healthcare coverage and increased Andrew's financial burden unnecessarily, demonstrating reluctance in co-parenting responsibilities.
 - **Example Pages:** Page 8 (July 9, 2024 exchange on insurance) and Page 15 (September 8, 2024 exchange).
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8. Exhibit I: Denial of Additional Parenting Time Requests Without Explanation

- **Context:** On multiple occasions, Andrew requested additional parenting time to foster his bond with LDW, such as requests for short visits or overnight stays. On September 12, 2024, and September 14, 2024, Andrew sought time with LDW for a night or even just a brief outing, which Emily denied without explanation. This lack of flexibility suggests an unwillingness to encourage a strong parent-child relationship.
 - **Significance:** This refusal of additional parenting time could indicate a pattern of limiting Andrew's access to LDW, impacting their bond and stability in LDW's life.
 - **Example Pages:** Page 14 (September 12 and 14, 2024 requests).
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9. Exhibit J: Evidence of Potential Neglect in LDW's Hygiene and Appearance

- **Context:** Throughout the exchanges, Andrew frequently reported concerns about LDW's appearance upon pickup, mentioning signs of neglect like dirtiness, unkempt clothing, or visible bruises. For instance, on May 30, 2024, he inquired about LDW's well-being, observing that he often appeared poorly cared for after spending time with Emily.
 - **Significance:** This could raise concerns about LDW's care and highlight the potential negative impact on his well-being during his time with Emily.
 - **Example Pages:** Page 3 (May 30, 2024) and additional instances found in the report logs
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V. Best Interest Factors Analysis (MCL 722.23)

The following is a full analysis of all 12 best interest factors as outlined in **MCL 722.23**, emphasizing the immediate need for emergency custody orders to protect LDW's health, stability, and overall welfare.

1. **Factor (a): Love, Affection, and Other Emotional Ties between Parent and Child**
Plaintiff maintains a deep, consistent bond with LDW, characterized by regular attempts to communicate and stay involved in his life. Defendant's obstructive actions, such as denying video calls and refusing routine updates, interfere with this bond and deprive LDW of emotional security and continuity with Plaintiff. This factor favors Plaintiff, as his commitment to fostering this bond is evident through consistent attempts at communication.
2. **Factor (b): Capacity and Disposition of the Parties to Give the Child Love, Guidance, and Continuation of Education and Raising in Religion or Creed, if Any**
Plaintiff has demonstrated his capacity to provide a stable environment for LDW that includes love, guidance, and active involvement in his early development. Defendant's refusal to share LDW's daycare information or cooperate in educational matters prevents Plaintiff from fully participating in LDW's educational development. Plaintiff's proactive approach to LDW's education and growth highlights his suitability under this factor.
3. **Factor (c): Capacity and Disposition of the Parties to Provide Food, Clothing, Medical Care, or Other Remedial Care Recognized and Permitted under State Law**
Plaintiff has consistently ensured that LDW's material and medical needs are met, including through health insurance and offers to take LDW to medical appointments. Defendant's documented refusals to permit necessary medical care place LDW's health at risk, directly impacting this factor. Plaintiff's proactive approach to LDW's healthcare needs strongly supports his request for emergency custody.
4. **Factor (d): Length of Time the Child Has Lived in a Stable, Satisfactory Environment, and the Desirability of Maintaining Continuity**
Defendant's household has been marked by instability, with frequent changes in cohabiting partners and inconsistent household structure, which compromise LDW's sense of stability. Plaintiff offers a stable, safe environment free from such disruptions, which is crucial for LDW's well-being and psychological health. Plaintiff's ability to provide a secure and steady home is favorable under this factor.
5. **Factor (e): Permanence, as a Family Unit, of the Existing or Proposed Custodial Home**
Plaintiff's household offers a more permanent family structure compared to Defendant's, who has shown a pattern of bringing different individuals into the home. Plaintiff's family unit is grounded in stability, without the frequent household changes that LDW has experienced with Defendant. This factor favors Plaintiff's proposed custodial home, which offers the continuity essential for LDW's growth and security.
6. **Factor (f): Moral Fitness of the Parties Involved**
Plaintiff has demonstrated moral integrity and responsible behavior, consistently complying with court orders, including the PPO. Defendant's behavior, including the misuse of the PPO and baseless accusations to obstruct Plaintiff's involvement, raises

concerns about her moral fitness. Plaintiff's adherence to court directives and his respectful co-parenting approach reflect his suitability under this factor.

7. **Factor (g): Mental and Physical Health of the Parties Involved**
Plaintiff maintains a strong disposition and stable mental health, which contribute to his suitability as a responsible parent. In contrast, Defendant's erratic behavior, escalating aggression, and confrontational approach raise concerns regarding her capacity to provide a secure environment. This factor leans in favor of Plaintiff, who is consistently focused on LDW's well-being.
 8. **Factor (h): Home, School, and Community Record of the Child**
Plaintiff has shown an active interest in LDW's educational and social development, including consistent attempts to gain access to daycare information. Defendant's refusal to communicate about these aspects of LDW's life impedes Plaintiff's ability to support LDW's community and school involvement. Plaintiff's ongoing efforts to be a part of LDW's life in these critical areas favor him under this factor.
 9. **Factor (i): Reasonable Preference of the Child, if the Court Considers the Child to Be of Sufficient Age to Express Preference**
Given LDW's young age, this factor may not apply directly. However, LDW's demonstrated comfort and bond with Plaintiff highlight a positive parent-child relationship, suggesting that maintaining this relationship aligns with LDW's likely preferences for security and consistency.
 10. **Factor (j): Willingness and Ability of Each of the Parties to Facilitate and Encourage a Close and Continuing Parent-Child Relationship between the Child and the Other Parent or the Child and the Parents**
Defendant's refusal to cooperate in communication, visitation arrangements, and routine updates directly undermines LDW's right to maintain a close relationship with Plaintiff. This unwillingness to encourage co-parenting, coupled with Defendant's obstructive tactics, contrasts sharply with Plaintiff's open and consistent efforts to facilitate a positive relationship for LDW's benefit. Plaintiff's willingness to co-parent supports his case under this factor.
 11. **Factor (k): Domestic Violence, Regardless of Whether the Violence Was Directed against or Witnessed by the Child**
Plaintiff has complied fully with all court orders, including the PPO. In contrast, Defendant's confrontational behavior and baseless accusations create a hostile environment that indirectly impacts LDW's emotional well-being. While no direct domestic violence is indicated, Defendant's behavior suggests an unhealthy dynamic that is detrimental to LDW's best interests.
 12. **Factor (l): Any Other Factor Considered by the Court to Be Relevant to a Particular Child Custody Dispute**
Defendant's documented attempts to alienate LDW from Plaintiff through baseless accusations, refusal to allow necessary healthcare, and misuse of the PPO to limit communication are all relevant to this custody dispute. Michigan courts recognize the serious implications of parental alienation and its long-term effects on a child's psychological health. This pattern of behavior warrants immediate court intervention to prevent further harm to LDW's welfare and his relationship with Plaintiff.
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13. VI. Emergency Temporary Custody Orders and Ex Parte Relief Sought

Plaintiff respectfully requests the Court's urgent intervention to grant temporary physical custody, based on the analysis of all 12 best interest factors, which overwhelmingly support Plaintiff's request to ensure LDW's immediate protection, stability, and access to a nurturing environment.

1. Grant of Emergency Temporary Custody

Award Plaintiff temporary physical custody to secure a stable, supportive environment free from Defendant's obstructive and erratic behavior. Plaintiff's history of cooperation with court directives and commitment to LDW's needs emphasize his role as a stable, responsible parent.

2. Exclusive Medical Decision-Making Authority

Grant Plaintiff authority over LDW's medical decisions to ensure timely healthcare, addressing Defendant's repeated refusals. This authority is necessary to safeguard LDW's immediate health.

3. Clear Communication and Parenting Time Protocols

Mandate Defendant's compliance with set communication requirements, including weekly video calls and routine updates on LDW's health and education, with non-compliance subject to court sanctions. This ensures Plaintiff remains informed of LDW's well-being.

4. Parent Only Exchanges

All exchanges should be conducted by the parent, and only the parents. This will continue to take place and the Muskegon Police Station on Fridays at 530pm, to ensure the safety of all individuals involved.

5. Appointment of a Parenting Coordinator

Assign a parenting coordinator to facilitate communication and provide oversight, reducing future conflicts and promoting accountable co-parenting.

6. Restraining Order on International Travel

Issue an immediate restraining order on LDW's travel to non-Hague Convention countries to prevent potential custodial interference, protecting Plaintiff's rights and LDW's access to both parents.

Respectfully submitted,

Andrew J. Pigors

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Date: _____